

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza
Criminal Misc Case No.7155 of 2024

Jalil

.... Accused-petitioner

-Versus-
The State

.... Opposite Party

Mr. Rakib Hossain, Advocate

.... For the petitioner

Mr. Sujit Chatterjee, DAG with

Ms. Farhana Afroze Runa, A. A. G with

Mr. Abdul Aziz Masud, A. A. G. with

Md. Shamim Khan, A.A.G

... For the State

Heard and Judgment on 28.02.2024.

S M Kuddus Zaman, J:

On an application under Section 561A of the Code of Criminal Procedure this Rule was issued calling upon the opposite parties to show cause as to why the impugned judgment and order dated 01.11.2023 passed by the learned Additional Sessions Judge, 5th Court, Mymensingh in Criminal Revision Case No.534 of 2023 upholding the order dated 05.09.2023 passed by the learned Senior Judicial Magistrate, Cognizance Court No.04, Mymensingh in Gouripur Police Station Case No.10 dated 14.08.2023 corresponding to G. R. No.167 of 2023 rejecting an application for seeking jummah of the seized truck being Registration No.Dhaka Metro-15-3735, Engine No.497TC93PSY840968, Chassis No.416472J5R700380 purchased in the name of Jalil should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

Facts in short are that the petitioner filed an application to the learned Senior Judicial Magistrate, Cognizance Court No.04, Mymensingh for getting zimma (custody) of the seized Truck being Registration No.Dhaka Metro-15-3735, Engine No.497TC93PSY840968, Chassis No.416472J5R700380, but the learned Senior Judicial Magistrate, Cognizance Court No.04, Mymensingh rejected the said petition by order dated 05.09.2023.

Being aggrieved by above order the petitioner preferred Criminal Revision Case No.534 of 2023 to the learned Sessions Judge, Mymensingh which was heard by the learned Additional Sessions Judge, 5th Court, Mymensingh Court who rejected above revision vide impugned order dated 01.11.2023.

Challenging the legality and propriety of above order the petitioner moved to this court and obtained this Rule.

Mr. Rakib Hossain, the learned Advocate for the accused-petitioner submits that the petitioner is the rightful owner of above Truck. Above Truck is kept in the open sky in front of the Police Station which is causing serious damage to above valuable vehicle. The petitioner wants to get jimma of above Truck and he will ensure better maintenance of the same and produce the Truck before the Court below whenever he is asked to do so. But the learned Additional Sessions Judge, 5th Court, Mymensingh failed to appreciate above materials on record and most illegally rejected above revisional application which is not tenable in law.

On the other hand Mr. Sujit Chatterjee, the learned Deputy Attorney General for the state opposes this petition of the petitioner for getting jimma seized Truck.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the FIR and the Seizure list that 7840 (seven thousand eight hundred forty) kg of sugar were recovered from the seized Truck.

It further turns out from the police report that the petitioner is the owner of the seized Truck.

The ultimate fate of above seized Truck will be determined at trial. But in the meantime above Truck which is a valuable asset requires proper maintenance. If the Truck is given in the jimma of the petitioner who is the rightful owner of the same then the proper maintenance of the vehicle will be ensured. The petitioner shall produce above Truck to the trial court whenever he is directed to do so.

In above view of the materials on record we hold that the learned Additional Sessions Judge, 5th Court, Mymensingh committed an error in rejecting the application of the petitioner seeking jimma of above Truck which is not tenable in law.

In the result, the Rule is made absolute.

The impugned judgment and order dated 01.11.2023 passed by the learned Additional Sessions Judge, 5th Court, Mymensingh in Criminal Revision Case No.534 of 2023 is set aside.

The learned Additional Sessions Judge, 5th Court, Mymensingh is directed to place above Truck in the jimma of the petitioner with condition that the petitioner shall produce the Truck to the trial court whenever he is directed to do so.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.